

24NNCV02061 24NNCV02061

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Case Number: 24NNCV02061 Hearing Date: August 7, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Summary Judgment

Hearing Date: 8/7/26

CASE NO./NAME: 24NNCV02061 / Hayrapetyan,
et al. v. SWH 2017-1 Borrower LP

Moving Party: Defendant &

Cross-Complainant SWH 2-17-1 Borrower LP

Responding Party: Plaintiffs Karen

Hayrapetyan and Ani Nahapetyan, as an individual and Guardian Ad Litem for
Elena Hayapetyan

Notice: Sufficient

Ruling: DENY

NOTICE

The

Court is NOT requesting oral argument on this matter/motion. Any party seeking argument should notify all other parties and the Court. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party

seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is a breach of lease action. On June 18, 2021, defendant and Cross-Complainant SWH 2017-1 Borrower LP aka Invitation Homes (Defendant) and plaintiffs and Cross-Defendants Karen Hayrapetyan and Ani Nahapetyan (collectively, Plaintiffs) entered into a written lease agreement for a renewable one-year term. Defendant alleges that Plaintiffs renewed the lease several times and paid their rent and fees under the lease agreement until January of 2024, at which point Plaintiffs made no further payments under the lease but continued to reside at the property. In January of 2024 a mold dispute arose between the parties, Plaintiffs alleged mold was present at the property and Defendant investigated.

On June 5, 2025, Plaintiffs filed a Complaint against Defendant alleging breach of implied warranty of habitability, breach of covenant of quiet enjoyment, negligence, private nuisance, intentional infliction of emotional distress, and collection of rent on substandard dwelling.

On August 7, 2024, Defendant filed the operative Cross-Complaint against Plaintiffs asserting breach of lease.

On March 9, 2026, Defendant filed the instant motion seeking summary judgment on its Cross-Complaint against Plaintiffs. On July 20, 2026, Plaintiffs filed an opposition. On July 23, 2026, Defendant filed a reply.

EVIDENTIARY

OBJECTIONS

With the reply papers, Defendant submitted

evidentiary objections to the evidence offered in opposition to Defendant's motion. However, most of the exhibits Plaintiff requests the Court to consider in opposition to the motion for summary judgment are the same exhibits Defendant seeks to have the Court consider in support of Defendant's own motion, including Exhibit Nos. 1 (Home Biotesting Limited Mold Survey dated 1/17/24), 2 (Mold Clearance Report dated 5/18/24), 3 (Home Biotesting Limited Mold Survey dated 6/3/24), and 7 (Plaintiffs' Medical Records). Objections to these exhibits will be overruled.

If Exhibit Nos. 4 (Envirocheck Environmental Report), 5 (Gold Health & Safety Mold Investigation Report), and 6 (Lab Reports referenced in the Gold Health & Safety Investigation) are not also requested to be considered by Defendant, then the Court will sustain objections to those exhibits on hearsay and foundation grounds.

REQUEST FOR JUDICIAL NOTICE

Defendant requests judicial notice of Exhibits: (T) Invitation Homes' Cross-Complaint filed on August 7, 2024; and (U) Plaintiffs'/Cross-Defendants' Karen Hayrapetyan's and Ani Hayrapetyan's Answer to Invitation Homes' Cross-Complaint filed on October 29, 2024. "A party requesting judicial notice of material under Evidence Code sections 452 or 453 must provide the court and each party with a copy of the material." (Cal. Rules of Court, rule 3.1306.) Plaintiffs do not provide the court with copies of the court orders for which judicial notice is requested. Accordingly, The request is denied.

LEGAL STANDARD

In reviewing a motion for summary judgment or adjudication, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.)

"[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues

of material fact.”²(*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.)³When a plaintiff seeks summary judgment, the plaintiff must produce admissible evidence on each element of each cause of action on which judgment is sought. (Code Civ. Proc., § 437c(p)(1).) The plaintiff is not required to disprove any affirmative defenses to discharge this burden. (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 564-65.)⁴

If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See Code Civ. Proc., § 437c, subd. (p)(2); see also *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.)⁵Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849-50.) The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken.⁶(*Aguilar, supra*, 25 Cal.4th at p. 855.)

“Once the [moving party] ... has met that burden, the burden shifts to the [non-moving party] ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The non-moving party may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.”⁷(*Ibid.*)⁸“If the [non-moving party] cannot do so, summary judgment should be granted.”⁹(*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

The court must “liberally construe the evidence in support of the party opposing summary judgment and resolve all doubts concerning the evidence in favor of that party,” including “all inferences reasonably drawn therefrom.”¹⁰(*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037; *Aguilar, supra*, 25 Cal.4th at pp. 844-45.) “On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence.¹¹While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only

when the inferences are indisputable may the court decide the issues as a matter of law.” If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839.) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court’s evaluation of credibility. [Citation.]” (Id. at p. 840; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

DISCUSSION

Defendant moves for summary judgment against Plaintiff on the Cross-Complaint, which asserts a single cause of action for Breach of Contract.

Breach
of Contract (Lease)

To state a cause of action for breach of contract, [Defendant] must be able to establish “(1) the existence of the contract, (2) [Defendant’s] performance or excuse for nonperformance, (3) [Plaintiffs’] breach, and (4) the resulting damages to the [Defendant].” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

If a breach of contract claim “is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.)

Moving Party’s Burden

Existence
of Contract

Defendant purports that a written lease

agreement was signed and renewed several times between the parties. (UMF, ¶¶ 1-6.) Defendant provides a copy of this lease agreement, and subsequent renewals signed by a representative of Defendant and only plaintiff Karen Hayrapetyan, to the Court. (Exh. A, G-H, J-K.) Here, Defendant seeks summary judgment on a cross-complaint imposing liability on two individuals, Karen Hayrapetyan and Ani Nahapetyan, however the lease agreement is only binding as to one party, Karen Hayrapetyan. Nobody else is listed as a resident on the lease. (Exh. A.) Accordingly, Defendant has not established existence of a contract as to both Plaintiffs.

Plaintiffs'

Alleged Breach

Defendant argues that Plaintiffs are unable to establish that they are excused of their contractual duty to pay rent and other fees and costs under the lease because the subject property was untenable or uninhabitable, due to the presence of a foul odor and mold, because there is no evidence of such conditions, and if mold was present it was minor. (Mot., pp. 8-9.) However, here the original Complaint, which is in ongoing litigation, concerns this exact issue. Plaintiffs claim, among other things, common law breach of implied covenant of habitability and substandard dwelling under Civil Code section 1941.1. (Comp., ¶¶ 48-55, 82-88.)

Here, Plaintiff cites caselaw from 1919 to argue that even if there is a breach of the implied warranty of habitability, Plaintiffs are not justified in withholding rent. (Mot., p. 13.) However, as stated by the court in *Green v. Superior Court*, "the tenant's duty to pay rent is "mutually dependent" upon the landlord's fulfillment of his implied warranty of habitability. (*Green v. Superior Court* (1974) 10 Cal.3d 616, 635.) Defendant concedes that mold was present and discusses at length the level of mold identified and the qualifications, or lack thereof, of the individual who identified it, but does not establish definitively that they did not breach the implied warranty of habitability. (Mot., pp. 8-11.)

Since Defendant has not established existence of a contract as to both Plaintiffs against whom they seek summary judgment and has not established that Plaintiffs cannot be excused from their duties under the lease agreement, resulting in breach, Defendant has not met their burden in establishing the cause of action for breach of contract.

Accordingly, the motion for summary

judgment is DENIED.

CONCLUSION
AND ORDER

Defendant SWH 2017-1 Borrower LP's Motion
for Summary Judgment is DENIED.

MOVING PARTY is to give notice and provide
a proposed order consistent with this ruling within 15 days from this date.